Consulting Agreement (balanced)

1. Services

Consultant will provide the consulting services described in each work order. Each party will cooperate in good faith.

2. Fees and Payment

Client will pay undisputed invoices within net 30 days. Client may dispute any invoice in good faith by written notice and need pay only the undisputed portion while the dispute is resolved.

3. Term and Termination

Either party may terminate this Agreement on thirty (30) days' written notice. Either party may terminate for material breach if the breach is not cured within thirty (30) days of notice. Client will pay a pro-rata refund of prepaid fees for services not performed.

4. Intellectual Property

Consultant retains all ownership of its background intellectual property and pre-existing tools, which remain excluded from this Agreement. Client owns the deliverables created specifically for Client once paid for in full.

5. Confidentiality

Each party shall keep the other party's confidential information confidential for three years after termination. This obligation does not apply to information that is publicly available, independently developed or required by law to be disclosed.

6. Indemnification

Each party shall indemnify the other against third-party claims to the extent caused by its own breach or negligence. Indemnity obligations are subject to the limitation of liability in this Agreement.

7. Limitation of Liability

Neither party's aggregate liability shall exceed the fees paid or payable in the twelve months before the claim. Neither party is liable for consequential damages, except for fraud or willful misconduct.

8. Warranties

Consultant warrants that the services will be performed in a professional manner. Consultant will re-perform any non-conforming services at no charge.

9. Governing Law and Disputes

This Agreement is governed by the laws of England and Wales. Disputes will be resolved by arbitration under ICC rules and each party shall bear its own costs.

10. Amendments

Any amendment must be a written agreement signed by both parties.